



UNITED INDIA INSURANCE COMPANY LIMITED

UNITED INDIA INSURANCE CO LTD, BRANCH OFFICE, PB NO 2, ALENGADEN BUILDINGS, IRINJALAKUDA
THRISSUR - 680121 KERALA
PHONE: (0480) 2822076,(0480) 2822076 FAX: EMAIL:

CONTRACTORS ALL RISK INSURANCE POLICY
POLICY NO.:1022014425P112516784
UIN NO. IRDAN545RP0096V01200708

PERIOD OF INSURANCE
From 00:00 Hrs of 05/11/2025
To Midnight of 04/05/2026

Insured
MR JOHN BOSCO SOLOMON
VII/186, MURIYAD.
680683
THRISSUR
KERALA

IMPORTANT NOTICE: KINDLY UPDATE YOUR AADHAAR NO. AND PAN/FORM 60. PLEASE IGNORE IF ALREADY UPDATED.

Agent Name : CEEMA NELSON
Agent Code : AGD0051094
Mobile/Landline Number/Email : 9446302005
: mavelyprudential@gmail.com

The genuineness of the policy can be verified through "Verify Your Policy" link at www.uiic.co.in.

For any Information, Service Requests, Claim intimation and Grievances please write to 102201@uiic.co.in

Download Customer App(www.uiic.co.in). REGD. & HEAD OFFICE, 24, WHITES ROAD, CHENNAI - 600014.

Website: <http://www.uiic.co.in>

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CONTRACTORS ALL RISK INSURANCE POLICY SCHEDULE

Policy No.	1022014425P112516784			Prev. Pol. No.			
Name Of Insured/ID	MR JOHN BOSCO SOLOMON / 23198522856						
Tel.(O)		Fax		Tel.(R)		Mobile	
Business/Occupation	None			Email			
Period of Insurance	From	00:00 Hrs of 05/11/2025		To	Midnight of 04/05/2026		

Net Premium:	₹ 660.00 SIX HUNDRED SIXTY RUPEES ONLY
(subject to adjustment of completion of project)	
Coinsurance Details:	UIC 102201 : 100%

Location Of Contract Site:	Higher Excess
ANNUAL PLAN-2025-2026 VELUKKARA GP AVITTATHUR CHURCH WEST ROAD DRAIN CONSTRUCTION WARD 5 PRO. NO. 61/26-GENERAL CIVIL WORK . THRISSUR STATE-KERALA PIN-680662	
	No

Location 1:-		
Cover Name	Sum Insured(₹)	Premium(₹)
Material Damage	200,000.00	152.60
STFI	200,000.00	40.00
Terrorism Cover	200,000.00	21.00
Third Party Liability	500,000.00	406.50
Earthquake Cover	200,000.00	10.00

Period Of Insurance Details:-

Location	Construction From	Construction To	Maintenance/Extended Maintenance Period(Months)
2	05/11/2025	04/05/2026	0

TPL Sum Insured: ₹ 500,000.00	AOY Limit: ₹ 500,000.00
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(Earthquake Cover : III EQ ZONE)

Contract Works(Type Of Project):
Ground leveling and area reclamation work
Project Description:
ANNUAL PLAN-2025-2026 VELUKKARA GP AVITTATHUR CHURCH WEST ROAD DRAIN CONSTRUCTION WARD 5 PRO. NO. 61/26-GENERAL CIVIL WORK .

Net Premium	₹	660.00
CGST(9%)	₹	59.00
SGST(9%)	₹	59.00
Stamp Duty	₹	1.00
Total	₹	778.00
Receipt No.	:	10110220125117200618
Receipt Date:	:	05/11/2025

Agency/Broker Code:	AGD0051094
Dev.Officer Code:	

Warranty:

- Effective date of Policy is from the date of receipt of premium.
- All Losses prior to date of payment of premium are excluded.

SECTION I : MATERIAL DAMAGE		SECTION II : THIRD PARTY LIABILITY	
1.Contract Works	Sum Insured(₹)		Sum Insured(₹)
i) Imported Items:		1.Limit of Indemnity in respect of any one person:	500,000.00
Invoice Cost	200,000.00	2.Limit of Indemnity in respect of any one accident or series of accidents arising out of one event :	500,000.00
Freight Insurance Handling, clearing & Forwarding charges	0.00	3. Total limit for Section II during Policy period	500,000.00
Custom Duty	0.00		
ii) Indigenous Items:			
Invoice cost including insurance ,handling clearing and transport upto to factory site	0.00		
Freight:	0.00		
iii)Material / Items supplied by the Principal			
Materials/ item supplied by the principal	0.00		
2. Express Freight	0.00		
3. Surrounding Property	0.00		
4. Clearance & Removal of Debris	0.00		
5. Escalation	0.00		
6. Air Freight	0.00		
7. Additional Custom Duty	0.00		
8. Maintenance Visits	0.00		
TOTAL FOR SECTION I	200,000.00		

EXCESS for Section I and II

Location Code	Risk Code	Normal Excess	AOG Excess
23490620016	181013	For each claim 5% of claim amount subject to minimum of ₹ 200000	For each claim 5% of claim amount subject to minimum of ₹ 200000

Principal Details	Contractors Details	Sub Contractor Details
SHABANA K, ASST ENGINEER NA	JOHN BOSCO SOLOMON NA	

Subject to terms, conditions, Endorsements, clauses, exclusions and Warranties printed herein:

- 1.Storage Warranty
- 2.PILING WORKS
- 3.SECTION WARRANTY
- 4.WORK TIME SCHEDULE
- 5.EXCLUSION OF CROPS(THIRD PARTY LIABILITY)
- 6.SPECIAL CONDITIONS CONCERNING SAFETY MEASURES WITH RESPECT TO PRECIPITATION,FLOOD AND INUNDATION
- 7.RAIN WATER DAMAGE EXCLUSION WARRANTY
- 8.Direct/consequential loss/damage/liability
- 9.WET RISK ENDORSEMENT
- 10.ENGG/END-111:ENDORSEMENT REGARDING SAFETY MEASURES
- 11.ENGG/END-114:WARRANTY CONCERNING UNDERGROUND CABLES AND PIPES
- 12.ENGG/END-115:SPECIAL CONDITIONS FOR OPEN TRENCHES DURING LAYING OF PIPELINES DUCTS AND CABLES
- 13.WARRANTY CONCERNING CONSTRUCTION MATERIAL
- 14.EPI 46 Ground Water Pumping
- 15.Minimum Damage Area Warranty
- 16.Road widening and augmentation works warranty

Customer GST/UIN No.:	32ARIPS3780N2Z6	Office GST No.:	32AAACU5552C1ZS
SAC Code:	997137	Invoice No. & Date:	4425112516784 & 05/11/2025
Amount Subject to Reverse Charges-NIL			

We hereby declare that though our aggregate turnover in any preceding financial year from 2017-18 onwards is more than the aggregate turnover notified under sub-rule (4) of rule 48, we are not required to prepare an invoice in terms of the provisions of the said sub-rule.

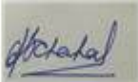
Anti Money Laundering Clause:-In the event of a claim under the policy exceeding ₹ 1 lakh or a claim for refund of premium exceeding ₹ 1 lakh, the insured will comply with the provisions of AML policy of the company. The AML policy is available in all our operating offices as well as Company's web site.

LET US JOIN THE FIGHT AGAINST CORRUPTION. PLEASE TAKE THE PLEDGE AT <https://pledge.cvc.nic.in>.

Date of Proposal and Declaration : 05/11/2025

IN WITNESS WHEREOF, the undersigned being duly authorised has hereunto set his/her hand at BO IRINJALAKUDA 102201 on this 05th day of November , 2025 .

For and On behalf of
United India Insurance Co. Ltd.



Duly Constituted Attorney(s)
Underwritten By - SHU60566 (BO UW CUM CASHIER)

Affix Policy Stamp
here.

CONTRACTORS ALL RISK INSURANCE POLICY

WHEREAS the insured named in the Schedule hereto had made to UNITED INDIA INSURANCE CO. LTD., (Hereinafter called, "the Company") a written proposal by completing a proposal form which together with any other statements made in writing by the Insured for the purpose of this policy, is deemed to be incorporated hereto.

NOW THIS POLICY OF INSURANCE WITNESSETH that subject to and in consideration of the Insured having paid to the Company, the premium mentioned in the schedule and subject to the terms, exclusions, provisions and conditions contained herein or endorsed hereon the Company will indemnify the Insured in the manner and to the extent herein after provided.

GENERAL EXCLUSIONS

The Company will not indemnify the Insured in respect of loss, damage or liability directly or indirectly caused by or arising out of or aggravated by-

- a) War, Invasion, Act of foreign enemy, hostilities or War like operations (whether war be declared or not) Civil War, rebellion, revolution, insurrection, mutiny, Civil commotion, Military or usurped power, martial law, conspiracy, confiscation, commandeering a group of malicious persons or persons acting on behalf of or in connection with any political organisation, requisition or destruction or damage by order of any Government de jure or defacto or by any Public, Municipal or Local Authority;
- b) Nuclear reaction, nuclear radiation or radioactive contamination;
- c) Willful act or willful neglect or gross negligence of the insured or his responsible representatives;
- d) Cessation of work whether total or partial.
- e) Loss, damage, cost or expenses of whatsoever nature directly or indirectly caused by, resulting from or in connection with any act of terrorism regardless of any other cause or event contributing concurrently or in any other sequence to the loss are excluded.

For the purpose of this warranty an act of terrorism means an act, including but not limited to the use of force or violence and/ or the threat thereof, of any person or group(s) of persons whether acting alone or on behalf of or in connection with any organisation(s) or Government(s) committed for political, religious, ideological or similar purpose including the intention to influence any Government and/ or to put the public, or any section of the public in fear.

The Warranty also excludes loss, damage, cost or expense of whatsoever nature directly or indirectly caused by, resulting from or in connection with any action taken in controlling, preventing suppressing or in any way relating to action taken in respect of an act of terrorism.

If the Company alleges that by reason of this exclusion, any loss, damage, cost or expenses is not covered by this insurance the burden of proving the contrary shall be upon the Assured.

In the event any portion of this exclusion is found to be invalid or unenforceable, the reminder shall remain in full force and effect.

In any action, suit or other proceedings where the company allege that by reason of the provisions of Exclusions (a) above any loss, destruction, damage or liability is not covered by this insurance, the burden of proving that such loss, destruction, damage or liability is covered shall be upon the Insured.

PERIOD OF COVER

Construction Period

The liability of the Company shall commence, (notwithstanding any date to the contrary specified in the Schedule) only from the time of commencement of work after the unloading of the property specified in the schedule from any conveyance at the site specified in the schedule whichever is earlier and shall expire on the date specified in the schedule. However, the Company's liability expires also for parts of the insured contract works taken over or put into service by the principal prior to the expiry date specified in the policy whichever shall be earlier.

'If actual construction period is shorter than the period indicated in the schedule, no refund of premium shall be allowed unless specifically allowed by Insurers'.

At the latest, the insurance shall expires on the date specified in the Schedule but if the work of construction included in the insurance is not completed within the time specified hereunder, the Company may extend the period of insurance but the Insured shall pay to the Company additional premium at rates to be prescribed by the Company.

GENERAL CONDITIONS

1. The due observance and fulfillment of the terms of this Policy in so far as they relate to anything to be done or complied with by the Insured and the truth of the statement and the answers in the questionnaire and proposal made by the Insured shall be a condition precedent to any liability of the company.
2. The Schedule and the Section(s) shall be deemed to be incorporated in and form part of this policy and expression 'this Policy' wherever used in this contract shall be read as including the Schedule and the Section(s). Any word or expression to which a specific meaning has been attached in any part of this Policy or of the Schedule or of the Section(s) shall bear such meaning wherever it may appear.
3. The insured shall at his own expense take all reasonable precautions and comply with all reasonable recommendations of the Company to prevent loss damage or liability and comply with statutory requirements and manufacturer's recommendations
4.
 - a) Representatives of the Company shall at any reasonable time have the right to inspect and examine the risk and the Insured shall provide the representatives of the Company with all details and information necessary for the assessment of the risk.
 - b) The Insured shall immediately notify the Company by Telegram and in writing of any material change in the risk and cause at his own expense, such additional precautions to be taken as circumstances may require and the scope of cover and/or premium shall if necessary be adjusted accordingly.

No material alteration shall be made or admitted by the Insured where by the risk is increased, unless the continuance of the Insurance be confirmed in writing by the Company.

5. In the event of any occurrence, which might give rise to a claim under this Policy, the Insured shall-

- a) Immediately notify the Company by Telephone or Telegram as well as in writing giving an indication as to the nature and extent of loss or damage;
 - b) take all steps within his power to minimise the extent of the loss or damage;

- c) preserve the parts affected and make them available for inspection by a representatives or Surveyor deputed by the company;
- d) furnish all such information and documentary evidence as the company may require;
- e) Inform the police authorities in case of loss or damage due to theft of burglary.

The company shall not in any case be liable for loss, damage or liability of which no notice has been received by the Company within 14 days of its occurrence.

Upon notification being given to the Company under this condition the Insured may carry out the repair or replacement of any minor damage not exceeding Rs.2,500/- In all other cases a representatives of the Company shall have the opportunity of inspecting the loss or damage before any repairs or alterations are affected. if a representatives of the Company does not carry out the inspection within a period of time which could be considered as adequate under the circumstances the Insured is entitled to proceed with the repairs or replacement.

The liability of the Company under this Policy in respect of any item sustaining damage shall cease if said item is not repaired properly without delay.

6. The Insured shall at the expense of the Company do and concur in doing and permit to be done, all such acts and things as may be necessary or required by the Company in the interest of any rights or remedies, or of obtaining relief or indemnity from parties (other than those insured under this Policy) to which the Company shall be or would become entitled or subrogated upon their paying for or making goods any loss damage under this policy, whether such acts and things shall be or become necessary or required before or after the Insured's indemnification by the Company.
7. If a claim is in any respect fraudulent or if any false declaration is made or used in support thereof or if any fraudulent means devices are used by the insured or anyone acting on his behalf to obtain benefit under this Policy, or if a claim is made and rejected and no action, or suit is commenced within three months after such rejection, all benefit under this policy shall be forfeited.
8. If at the time of any loss or damage happening to any property hereby insured there be any other subsisting insurance or insurances, whether effected by the Insured or by any other person or persons covering the same property, this Company shall not be liable to pay or contribute more than its rateable proportion of such loss or damage. In case of Multiple policies involving Bank or other lending or financing entity, if there is more than one insurance policy issued to the customer/policyholder covering the same risk, the insurer will not apply contribution clause. Underinsurance will be applied on an overall basis taking into consideration the sum insured under all policies and comparing it with the value at risk.
9. This insurance may be terminated at any time at the request of the Insured. The refund will be made on proportionate basis for the unexpired period, provided
 - i) No claim(s) made during the policy period
 - ii) The unexpired period is not less than 3 months or 25 % of the policy period whichever is less.
 - iii) Testing period should not have commenced.

The insurer can cancel the policy on the grounds of established misrepresentation and fraud, by giving minimum notice of 7 days to the policyholder. No refund of premium will be made, on cancellation, in this case.

SECTION I - MATERIAL DAMAGE

The Company hereby agrees with the Insured (subject to the exclusions and conditions contained herein or endorsed hereon) that if, at any time during the period of insurance stated in the said Schedule, or during any further period of extension thereof the property (except packing materials of any kind) or any part thereof described in the said Schedule be lost, damaged or destroyed by any cause, other than those specifically excluded hereunder, in a manner necessitating replacement or repair the Company will pay or make good all such loss or damage upto an account not exceeding in respect of each of the items specified in the Schedule the sum set opposite thereto and not exceeding in the Whole the total sum insured hereby.

The Company will also reimburse the Insured for the cost of clearance and removal of debris following upon any event giving rise to an admissible claim under this Policy but not exceeding in all the sum (if any) set opposite thereto in the Schedule.

EXCLUSIONS TO SECTION - I

The Company shall not, however, be liable for -

- a) the first amount of the loss arising out of each and every occurrence shown as Excess in the Schedule;
- b) loss discovered only at the time of taking an inventory;
- c) normal wear and tear, gradual deterioration due to atmospheric conditions or lack of use or obsolescence or otherwise, rust, scratching of painted or polished surfaces or breakage of glass;
- d) loss or damage due to faulty design;
- e) the cost of replacement repair or rectification of defective material and /or workmanship, but this exclusion shall be limited to the items immediately affected and shall not be deemed to exclude loss of or damage to correctly executed items resulting from an accident due to such defective material and/or workmanship;
- f) the cost necessary for rectification or correction of any error during construction unless resulting in physical loss or damage;
- g) loss of or damage to files, drawings, accounts, bills currency, stamps, deeds, evidence of debts, notes, securities, cheques, packing materials such as cases, boxes, crates;
- h) any damage or penalties on account of the Insured's non-fulfillment of the terms of delivery or completion under his Contract of construction or of any obligations assumed there under or lack of performance including consequential loss of any kind of description or for any aesthetic defects or operational deficiencies;

- i) loss of or damage to vehicles licensed for general road use or water borne vessels or Machinery/Equipment mounted or operated or fixed on floating vessels/craft/barges or aircraft.

PROVISIONS APPLYING TO SECTION I**Memo 1- SUM INSURED**

It is a requirement of this Insurance that the sum of insurance stated in the schedule shall not be less than the completely erected value of the property inclusive of frights, customs duty, erection cost and the insured undertakes to increase or decrees the amount of insurance in the event of any material fluctuation in the level of wages or prices. Provided always that such increase or decrease shall take affect only after the same has been recorded on the policy by the Company.

If in the event of the occurrence of a loss, or damage it is found that the Sum insured representing the completely erected value of the property and/or of particular item involved is less than the amount required to be insured, then the amount recoverable by the insured under this policy shall be reduced is such proportion as the Sum Insured bears to amount required to be insured.

Memo 2 - PREMIUM ADJUSTMENT

The Sum Insured under the Policy representing the complete value of the contract works shall be adjustable at completion of the construction on the basis of actual values to be declared by the insured in respect of freight and handling charges, customs dues and construction cost and difference in premium shall be met with by payment at the rate agreed to or by the insured as the case may be. Any increase or decrease in the Prime cost of materials shall not be the subject matter of premium adjustment.

Memo 3- REINSTATEMENT OF SUM INSURED

In the event of loss or damage the Insurance shall notwithstanding be maintained in force during the period of insurance for the Sum Insured the Insured undertaking to pay a pro-rata additional premium on the full amount of each claim for the loss or damage from the date of such loss to the expiry of the period of Insurance.

Memo 4 - BASIS OF LOSS SETTLEMENT

In the event of any loss or damage the basis of any settlement under this policy shall be-

a) in the case of damage which can be repaired the cost of repairs necessary to restore the property to their condition immediately before the occurrence of the damage less salvage, or

b) in the case of a total loss- the actual value of the property immediately before the occurrence of the loss less salvage;

However, only to the extent the cost claimed has to be borne by the Insured and to the extent they are included in the Sum Insured and provided always that the provisions and conditions have been compiled with.

All damages, which can be repaired, shall be repaired , but if the cost of repairing any damage equals or exceeds the value of the property immediately before the occurrence of the damage, the settlement shall be made on the basis provided for in (b) above.

The cost of any provisional repairs will be borne by the Company if such repairs constitute part of the final repairs and do not increase the total repair expenses.

The cost of any alterations, additions and/or improvements shall not be recoverable under this Policy.

Memo 5- EXTENSION OF COVER

Any extra charges incurred for overtime, work on holidays, express freight (excluding air freight) are not covered by this insurance unless agreed upon at an additional premium to be prescribed by the Company.

Memo 6- CONSTRUCTION PLANT AND MACHINERY

Loss of or damage to Construction Plant and Machinery excludes loss or damage directly caused by its own explosion or its own mechanical or electrical breakdown or derangement.

Memo 7 - SURROUNDING PROPERTY

Loss of or damage to property located on or adjacent to the site and belonging to or held in care custody or control of the Principal (s) or the Contractor(s) shall only be covered if occurring directly due to the construction of the items insured under Section I and happening during the period of cover, and provided that a separate Sum therefore has been entered in the Schedule under Section I, for Principal's surrounding specified property. This cover does not apply to construction/erection machinery, plants and equipment.

Memo 8 - MAJOR PERILS/AOG Perils

The major peril/Acts of God claims shall mean claims arising out of-

- a) Earthquake - Fire & Shock
- b) Landslide/Rockslide/Subsidence
- c) Flood/Inundation
- d) Storm/Tempest/Hurricane/Typhoon/Cyclone/Lightning or other atmospheric disturbances.
- e) Collapse
- f) Water damage for 'wet' risks i.e. contract involving works in rivers, canals, lakes or sea.

Memo 9 - REINSTATEMENT OF THE INDEMNITY LIMIT

Reinstatement of the indemnity limit on payment of additional premium after occurrence of claim can be allowed for extensions like express fright, overtime, surrounding property, air freight.

Memo 10 - THRID PARTY LIABILITY

Third party liability (TPL) cover cannot be granted during extended maintenance.

SECTION II - THRID PARTY LIABILITY

The Company will indemnify the insured against-

- a) legal liability for accidental loss or damage caused to property of other persons including property held in trust by or under custody of the Insured for which he is responsible excluding any such property used in connection with construction thereon.
- b) legal liability (liability under contract excepted) for fatal or non-fatal injury to any persons other than the Insured's own employees or workmen or employees of the owner of the works or premises or other firms connected with any other construction work thereon, or members of the Insured's family or of any of the aforesaid; directly consequent upon or solely due to the construction of any property described in the Schedule.

Provided that the total liability of the Company during the period of Insurance under this cause shall not exceed the limits of indemnity set opposite thereto in the Schedule.

In respect of a claim for compensation to which the indemnity provided herein applies, the Company will, in addition, indemnify the Insured against-

- a) all costs and expenses of litigation by any claimant from the Insured,
- b) all costs and expenses incurred with the written consent of the Company.

The exclusion contained in paragraphs (d), (f) &(g) in Section I of this Policy shall apply also to this Section

EXCLUSIONS TO SECTION II-

The Company will not indemnify the Insured in respect of-

1. The Excess stated in the Schedule to be borne by the **Insured** in anyone occurrence related to property damage.
2. Expenditure incurred in doing or redoing or making good or repairing or replacing anything covered or coverable under Section I of this Policy;
3. Liability consequent upon
 - a) bodily injury to or illness of employees or workmen of the Contractor(s) or the Principal(s) or any other firm connected with the project which is insured under Section I, or members of their families;
 - b) Loss of or damage to property belonging to or held in care custody or control of the Contractor(s) , the Principal(s) or any other firm connected with the project which or part of which is insured under Section-I, or an employee or workman of one of the aforesaid;
 - c) any accident caused by vehicles licensed for general road use or by waterborne vessels or aircraft;
 - d) any agreement by the Insured to pay any sum by way of indemnity or otherwise unless such liability would have attached also in the absence of such agreement.

CONDITIONS APPLYING TO SECTION II

1. No admission, offer, payment or indemnity shall be made or given by or on behalf of the Insured without the written consent of the Company who shall be entitled, if they so desire, to take over and conduct in the name of the Insured the defense or settlement of any claim or to prosecute for their own benefit in the name of the Insured any claim for indemnity or damage or otherwise and shall have full discretion in the conduct of any proceeding or in the settlement of any claim and the Insured shall give all such information and assistance as the Company may require.
2. The company may, so far as any accident is concerned, pay to the Insured the limit of indemnity for anyone accident/anyone period, but deducting there from in such case any sum/s already paid as compensation in respect thereof or any lesser sum for which the claim or claims arising from such accident can be settled and the company shall thereafter be under no further liability in respect of such accident under this section.

Communicable Disease Exclusion Clause:-

1. Notwithstanding any provision, clause or term of the Policy, to the contrary, it is declared and/or clarified that nothing in the Policy shall be construed as covering loss, cost, damage, liability, claim, fines, penalty or expense or any other amount of whatsoever nature, whether directly or indirectly and/or in whole or in part, related to, caused by, contributed to by, resulting from, as a consequence of, attributable to, arising under, out of or in connection with, or in any way involving (this includes all other terms commonly used and/or understood to reflect or describe nexus and/or connection from one thing to another whether direct or indirect):
 - 1.1 a Communicable Disease including fear and/or threat thereof (whether actual or perceived), the actual or alleged transmission thereof, regardless of any other cause or event having occurred or contributed thereto either concurrently or in any sequence
 - 1.2 a pandemic or epidemic, whether declared by the World Health Organisation or any governmental authority.
2. As used herein, Communicable Disease means: any infectious, contagious or communicable substance or agent and/or any infectious, contagious or communicable disease which can be caused and/or transmitted by means of substance or agent where:
 - 2.1 the disease includes, but is not limited to an illness, sickness, condition or an interruption or disorder of body functions, systems or organs, and
 - 2.2 the substance or agent includes, but is not limited to, a virus, bacterium, parasite, other organism or other micro-organism (whether asymptomatic or not); including any variation or mutation thereof, whether deemed living or not, and
 - 2.3 the method of transmission, whether direct or indirect, includes but not limited to, airborne transmission, bodily fluid transmission, transmission through contact with human fluids, waste or the like, transmission from or to any surface or object, solid, liquid or gas or between organisms including between humans, animals, or from any animal to any human or from any human to any animal, and
 - 2.4 the disease, substance or agent is such:
 - 2.4.1 that causes or threatens damage or can cause or threaten damage to human health or human welfare, or
 - 2.4.2 that causes or threatens damage to or can cause or threaten damage to, deterioration to, contamination of, loss of value of, loss of marketability of or loss of use or usefulness of, tangible or intangible property. For avoidance of doubt, Communicable Disease includes but is not limited to Coronavirus Disease 2019 (Covid -19) and any variation or mutation thereof.
3. For further avoidance of doubt, any contingent or other business interruption loss, cost, damage, loss of income, loss of use, increased cost of working and/or extra expense arising out of or attributable to:
 - 3.1 any partial or complete closure of and/or slowdown in, including but not limited to any closure by or under the advisories of public, military, government or civil authorities, or any prevention/denial of access to insured premises, or customer and or supplier premises (including service / utility providers), or
 - 3.2 change in consumer behaviour, or
 - 3.3 an absence of infected employees or employees suspected of being infected shall not be covered by this Insurance Contract.
4. For still further avoidance of doubt, loss, cost, damage, liability, claim, fines, penalty or expense or any other amount excluded hereby, includes but is not limited to any cost to identify, clean-up, detoxify, disinfect, decontaminate, mitigate, remove, evacuate, repair, replace, monitor, sanitize or test:

- (1) for a Communicable Disease or
 (2) any tangible or intangible property covered by this Insurance Contract that is affected by such Communicable Disease.

5. It is clarified that

- (1) no other prior, concurrent or subsequent provision, clause, term or exception of this Insurance Contract (including (but not limited to) any prior, concurrent or subsequent endorsement and/or any provision, clause, term, buy back or exception that operates, or is intended to operate, to extend the coverage of, or protections provided by, this Insurance Contract by whatever name called like any coverage extension, additional coverage, global extension, exception to any exclusion);
 (2) any change in the law, clause or similar provision;
 (3) any follow the fortunes clause or similar provision; and/or
 (4) no change in the law or any regulation (to the extent permitted by applicable law), shall operate to provide any Insurance, coverage or protection under this Insurance Contract that would otherwise be excluded through the exclusion set forth in this Endorsement Clause.

6. If the Insurer alleges that by reason of this Endorsement, any amount is not covered by this Insurance Contract, the burden of proving to the contrary shall be upon the Insured.

ENDORSEMENTS

Terrorism Damage Cover Endorsement (Material Damage only)

INSURING CLAUSE

Subject otherwise to the terms, exclusions, provisions and conditions contained in the Policy and in consideration of the payment by the Insured to the Company of additional premium as stated in the Schedule, it is hereby agreed and declared that notwithstanding anything stated in the 'Terrorism Risk Exclusion' of this Policy to the contrary, this Policy is extended to cover physical loss or physical damage occurring during the period of this Policy caused by an act of terrorism, subject to the exclusions, limits and excess described hereinafter.

For the purpose of this cover, an act of terrorism means an act or series of acts, including but not limited to the use of force or violence and/or the threat thereof, of any person or group(s) of persons, whether acting alone or on behalf of or in connection with any organisation(s) or government(s), or unlawful associations, recognized under Unlawful Activities (Prevention) Amendment Act, 2008 or any other related and applicable national or state legislation formulated to combat unlawful and terrorist activities in the nation for the time being in force, committed for political, religious, ideological or similar purposes including the intention to influence any government and/or to put the public or any section of the public in fear for such purposes.

This cover also includes loss, damage, cost or expense directly caused by, resulting from or in connection with any action taken in suppressing, controlling, preventing or minimizing the consequences of an act of terrorism by the duly empowered government or Military Authority.

Provided that If the Insured is eligible for indemnity under any government compensation plan or other similar scheme in respect of the damage described above, this Policy shall be excess of any recovery due from such plan or scheme.

For the purpose of the aforesaid inclusion clause, "Military Authority" shall mean armed forces, para military forces, police or any other authority constituted by the government for maintaining law and order.

LOSSES EXCLUDED

This cover shall not indemnify loss of or damage to property caused by any or all of the following:-

1. loss by seizure or legal or illegal occupation;
2. loss or damage caused by:
 - (i) voluntary abandonment or vacation,
 - (ii) confiscation, commandeering, nationalisation, requisition, detention, embargo, quarantine, or any result of any order of public or government authority, which deprives the Insured of the use or value of its property;
3. loss or damage arising from acts of contraband or illegal transportation or illegal trade;
4. loss or damage directly or indirectly arising from or in consequence of the seepage and or discharge of pollutants or contaminants, which pollutants and contaminants shall include but not be limited to any solid, liquid, gaseous or thermal irritant, contaminant or toxic or hazardous substance or any substance the presence, existence or release of which endangers or threatens to endanger the health, safety or welfare of persons or the environment;
5. loss or damage arising directly or indirectly from or in consequence of chemical or biological emission, release, discharge, dispersal or escape or chemical or biological exposure of any kind;
6. loss or damage arising directly or indirectly from or in consequence of asbestos emission, release, discharge, dispersal or escape or asbestos exposure of any kind;
7. any fine, levy, duty, interest or penalty or cost or compensation/damages and/or other assessment which is incurred by the Insured or which is imposed by any court, government agency, public or civil authority or any other person;
8. loss or damage by electronic means including but not limited to computer hacking or the introduction of any form of computer virus or corrupting or unauthorised instructions or code or the use of any electromagnetic weapon. This exclusion shall not operate to exclude losses (which would otherwise be covered under this Policy) arising from the use of any computer, computer system or computer software programme or any other electronic system in the launch and/or guidance system and/or firing mechanism of any weapon or missile;
9. loss or damage caused by vandals or other persons acting maliciously or by way of protest or strikes, labour unrest, riots or civil commotion;
10. loss or increased cost occasioned by any public or government or local or civil authority's enforcement of any ordinance or law regulating the reconstruction, repair or demolition of any property insured hereunder;
11. any consequential loss or damage, loss of use, delay or loss of markets, loss of income, depreciation, reduction in functionality, or increased cost of working;
12. loss or damage caused by factors including but not limited to cessation, fluctuation or variation in, or insufficiency of, water, gas or electricity supplies and telecommunications or any type of service;
13. loss or increased cost as a result of threat or hoax;
14. loss or damage caused by or arising out of burglary, house-breaking, looting, theft, larceny or any such attempt or any omission of any kind of any person (whether or not such act is committed in the course of a disturbance of public peace) in any action taken in respect of an act of terrorism;
15. loss or damage caused by mysterious disappearance or unexplained loss;

16. loss or damage directly or indirectly caused by mould, mildew, fungus, spores or other micro-organism of any type, nature or description, including but not limited to any substance whose presence poses an actual or potential threat to human health;
17. total or partial cessation of work or the retardation or interruption or cessation of any process or operations or omissions of any kind.

LIMIT OF INDEMNITY

The limit of indemnity under this cover shall not exceed the Total Sum Insured given in the Policy Schedule or INR 15,000,000,000 whichever is lower. In respect of several insurance policies within the same compound/location with one or different insurers, the maximum aggregate loss payable per compound/location by any one or all insurers shall be INR 15,000,000,000. If the actual aggregate loss suffered at one compound/location is more than INR 15,000,000,000, the amounts payable under individual policies shall be reduced in proportion to the sum insured of the policies.

EXCESS

Shops & Residential Risks: 1 % of the claim amount for each and every claim subject to Minimum of INR 10,000 and Maximum of INR 500,000

Non Industrial Risks: 1 % of the claim amount for each and every claim subject to Minimum of INR 25,000 and Maximum of INR 1,000,000

Industrial Risks: 5 % of the claim amount for each and every claim subject to Minimum of INR 100,000 and Maximum of INR 25,000,000

CANCELLATION CLAUSE

Notwithstanding the cancellation provisions relating to the basic insurance policy on which this endorsement is issued, there shall be no refund of premium allowed for cancellation of the Terrorism risk insurance during the period of insurance except where such cancellation is done along with the cancellation of the basic insurance. Where a policy is cancelled and rewritten midterm purely for the purpose of coinciding with the accounting year of the insured, prorata refund of the cancelled policy premium will be allowed.

If the cancellation is for any other purpose, refund of premium will only be allowed after charging short term scale rates.

Note: The definitions, terms and conditions of main Policy save as modified or endorsed herein shall apply.

THIRD PARTY LIABILITY

In consideration of the payment of the additional premium of Rs.406.50 it is hereby agreed and declared that notwithstanding anything to the contrary stated in this policy, the Company will indemnify the insured:

- a) against legal liability for the accidental loss or damage caused to the property of other persons
- b) against legal liability (liability under contract excepted) for fatal or non-fatal injury to any persons other than the insured or his own employees or employee of the owner of the works/site/premises/location or employees of the other firms/connected with any other work site/premises/location or members of the family of the insured or any of the aforesaid

EXCLUSIONS UNDER THE TPL EXTENSION

The Company will not indemnify the insured, under this extension in respect of-

- a) The first amount of policy excess of each claim for any one occurrence related to property damage.
- b) Expenditure incurred in doing or redoing or making good or repairing or replacing any thing covered or coverable under the policy.
- c) Liability consequent upon
 - (i) bodily injury to or illness of employees/Workmen/members of the families of the insured or of the owners of the works/site/premises/location or of any other firm/contractors connected with any other work at the works/site/premises/Location ;
 - (ii) loss of or damage or property belonging to or held in trust by or under custody of the owner of the works/sites/premises/location of any other firms/contractors or an employee/workmen/family members of any of the aforesaid.
 - (iii) any accident caused by vehicles licensed for general road use or by waterborne vessels or by aircraft.
 - (iv) any agreement by the insured to pay any sum by way of indemnity or otherwise unless such liability would have attached also in the absence of such agreement.

CONDITIONS APPLYING TO TPL EXTENSION

- a) No admission, offer, promise, payment of indemnity shall be made or given by or on behalf of the insured without written consent of the company who shall be entitled, if any so desire, to take over and conduct in the name of the insured the defense or settlement of any claim or to prosecute for their own benefit in the name of the insured any claim for indemnity or damage or otherwise and shall have full discretion in the conduct of any proceeding or in the settlement of any claim and the insured shall give all such information and assistance as the company may require.
- b) The Company may, so far, as any accident is concerned, pay to the insured the limit of indemnity for any one accident/for any one period, after deducting therefrom in such case of any sum/s already paid as compensation in respect thereof or any lesser sum for which the claim or claims arising from such accident can be settled and the Company shall thereafter be under no further liability in respect of such accident under this section.

EARTHQUAKE(Fire and Shock)

Policy may be extended to cover the above subject to following endorsement wordings:

If option to delete STFI peril is exercised

"In consideration of the payment by the Insured to the Company of the sum of Rs.10 additional premium, it is hereby agreed and declared that notwithstanding anything stated in the printed exclusions of this policy to the contrary, this Insurance is extended to cover loss or damage (including loss or damage by fire) to any of the property Insured by this policy occasioned by earthquake including Landslide / Rockslide resulting therefrom but excluding flood or overflow of the sea, lakes, reservoirs and rivers caused by Earthquake.

Provided always that all the conditions of this policy shall apply (except in so far as they may be hereby expressly varied) and that any reference therein to loss or damage by fire shall be deemed to apply also to loss or damage directly caused by any of the perils which this insurance extends to include by virtue of this endorsement."

If option to delete STFI peril is not exercised

In consideration of the payment by the Insured to the Company of the sum of ₹ 40 additional premium, it is hereby agreed and declared that notwithstanding anything stated in the printed exclusions of this policy to the contrary, this Insurance is extended to cover loss or damage (including loss or damage by fire) to any of the property Insured by this policy occasioned by or through or in consequence of earthquake including flood or overflow of the sea, lakes, reservoirs and rivers and/or Landslide / Rockslide resulting therefrom.

Provided always that all the conditions of this policy shall apply (except in so far as they may be hereby expressly varied) and that any reference therein to loss or damage by fire shall be deemed to apply also to loss or damage directly caused by any of the perils which this insurance extends to include by virtue of this endorsement."

Special conditions

1. Excess clause
5% of each and every claim subject to a minimum of Rs.10,000/.
2. Extension cover shall be granted only if the entire property in one complex /compound / location covered under the policy is extended to cover this risk and the Sum Insured for this extension is identical to the Sum Insured against the risk covered under main policy except for the value of the plinth and foundations of the building(s)
3. Onus of proof

In the event of the Insured making any claim for loss or damage under this policy he must (if so required by the Company) prove that the loss or damage was occasioned by or through or in consequence of earthquake.

WARRANTIES

PILING WORKS

Notwithstanding anything contained herein to the contrary, it is a condition of this Policy that the Insurers shall not be liable to indemnify the Insured under Section 1 Material Damage in respect of:

(A) foundation piles and/or casings and/or sheet pile constructions which are:

- (a) misplaced and/or misaligned;
- (b) lost or damaged during driving and/or extraction;
- (c) the subject of individual or block disconnection or declutching;
- (B) the cost of repair, replacement, or rectification of piling work necessitated by Leakage or infiltration of fluids or material at seams, joints, connections and/or beneath sheet pile constructions or into casings, unless such leakage or infiltration is a direct consequence of other physical loss or damage for which indemnity is provided by this policy;
- (C) any abandoned piling work, unless such abandonment is a direct consequence of other physical loss or damage for which indemnity is provided by this Policy;
- (D) Piles which have failed to pass a load test or to reach the required bearing load, unless such failure is a direct consequence of other physical loss or damage for which indemnity is provided by this policy.

SECTION WARRANTY

In respect of road construction, the combine maximum length of excavation work, subgrade and subbase courses not covered by a waterproof wearing course shall not exceed any one of the following at any one time.

A road portion is deemed to be not completed until the asphalt or concrete course has been laid. It is understood that road shall include all types of roads including but not limited to motorways and highways.

- a) Projects in J&K, Ladakh, Himachal, Bihar, UP, Uttarakhand and 8 north eastern states to have open section limit as maximum 12% of the project length at any given time with minimum distance of 400 meters between two sections
- b) Project in other states to have open section limit as maximum 20% of the project length at any given time with minimum distance of 250 meters between two sections
- c) 150 meters x 3 unconnected sections for internal & access roads of hydel power projects and any two unconnected sections separated by a distance of 50 meters from each other.

WORK TIME SCHEDULE

Notwithstanding anything contained herein to the contrary, it is a condition of this Policy that if any calendar date as contained in the Works Time Schedule varies in respect of any material part or unit of the works by more than the period stated below, such variation shall be regarded as a material change to which the obligations as set forth in General Conditions will apply.

Calendar date variation: 4 weeks

EXCLUSION OF CROPS (THIRD PARTY LIABILITY)

Notwithstanding anything contained herein to the contrary, it is hereby agreed that as of the inception date of this Policy, the following Exclusion is added to Section 2 Third Party Liability:

The Insurers will not indemnify the Insured in respect of any liability, directly or indirectly, due to or arising from loss or damage to forests, woods, crops, plants, cultures, flowers and fish farms.

SPECIAL CONDITIONS CONCERNING SAFETY MEASURES WITH RESPECT TO PRECIPITATION, FLOOD AND INUNDATION

It is agreed and understood that otherwise subject to the terms, exclusions, provisions and conditions contained in the policy or endorsed thereon, the Insurers shall indemnify the Insured for loss, damage or liability caused directly or indirectly by precipitation only if adequate precautions have been taken in designing and executing the project involved. In this context, adequate precautions shall mean that allowance is made for precipitation, flood and inundation up to a return period of 20 years for the location insured and the entire policy period on the basis of statistics prepared by the Meteorological agencies.

Loss, damage or liability resulting from the Insured's not immediately removing obstruction (e.g. sand, trees) from watercourses, whether carrying water or not, in order to maintain free water flow shall not be indemnifiable.

RAIN WATER DAMAGE EXCLUSION WARRANTY

It is agreed and understood that otherwise subject to the terms, exclusions, provisions and conditions contained in the policy or endorsed thereon, the Insurers shall NOT indemnify damage caused by hill erosion, gully erosion and rain cuts caused by flow of rain water.

Direct/consequential loss/damage/liability

No direct/consequential loss/damage/liability on the works completed before commencement of the policy shall be admissible.

WET RISK ENDORSEMENT (applicable for projects involving wet risks)

A. Exclusion The insurer shall not indemnify the insured in respect of costs incurred for:-

1. Loss or damage to berths, wharves, jetties and the likes caused by their subsidence or sinking
2. Normal action of the river/sea/ Water Channel and the like
3. Loss of or damage to more than 200 metre of uncompleted or unprotected seawall, quay or similar other marine structure
4. Loss, damage or liability due to soil erosion
5. Dredging or re-dredging

6. Lost or damaged fill material
7. Replacing or rectifying piles or retaining wall elements:
 - which have become misplaced or misaligned or jammed during their construction
 - which are lost or abandoned or damaged during driving or extraction, or
 - which have become obstructed by jammed or damaged piling equipment or casings
8. Cost of Rectifying disconnected or de-clutched sheet piles
9. Cost of Rectifying any leakage or infiltration of material of any kind
10. Cost as a result of piles or foundation elements having failed to pass a load bearing test or otherwise not having reached their designed load bearing capacity
11. Cost for reinstating profiles or dimensions
12. any floating and other equipment such as caissons, barges and the like and liabilities therefrom
13. any mobilization/demobilization and /or other costs which arise for stand-by/waiting on weather of offshore and/or in water/on waterborne vessel construction equipment
14. loss or damages to pulling wires, anchors, chains and buoys
15. loss or damage due to impact of shipping
16. marine liability

B. Definition

Normal action of the sea /River means the state of the sea/River, which manifests itself up to No. 8 on the Beaufort scale(or comparable for River), or the state of the tides, current and wave action of the sea/River, which must be statistically expected to occur once during a 20 year period, whichever is the more onerous.

C . Warranties

It is agreed and understood that subject otherwise to the terms, exclusions and provisions contained in the policy or endorsed thereon, the insured shall:

- Receive weekly weather updates from the local meteorological office during the period of insurance and make continuous contact to the local meteorological office within 12 hours notice of an imminent storm.
- Make navigation distance for public traffic to work site at minimum 100m.
- In the event of Heavy Rains and/or Flood like situation the assured will keep in touch with local Public Authorities in respect of any imminent warning of discharge of water from any upstream Dam and or reservoir and would initiate suitable protective safety measures.

ENGG/END-111: ENDORSEMENT REGARDING SAFETY MEASURES -

It is agreed and understood that otherwise subject to the terms, exclusions, provisions and conditions contained in the policy or endorsed thereon, the Insurers shall only indemnify the Insured for loss, damage or liability directly or indirectly caused by flood and inundation if adequate safety measures have been taken during planning and execution of the project.

Adequate safety measures in this context shall mean that the average monthly rainfall, flood and inundation hazard as known from statistics of the competent meteorological offices for the respective month and location has been taken into account.

ENGG/END-114: WARRANTY CONCERNING UNDERGROUND CABLES AND PIPES -

It is agreed and understood that otherwise subject to the terms, exclusions, provisions and conditions contained in the policy or endorsed thereon, the insurers shall only indemnify the Insured in respect of loss of or damage to existing underground cables and/or pipes or other underground facilities if, prior to the commencement of works, the Insured has enquired with the relevant authorities about the exact position of such cables, pipes or other underground facilities.

The indemnity shall in any case be restricted to the repair costs of such cables, pipes or other underground facilities, any consequential damage being excluded from the cover.

ENGG/END-115: SPECIAL CONDITIONS FOR OPEN TRENCHES DURING LAYING OF PIPELINES DUCTS AND CABLES -

It is agreed and understood that otherwise subject to the terms, exclusions, provisions and conditions contained in the policy or endorsed thereon, the Insurers will indemnify the Insured for any loss or damage due to storm, rainfall, flood, inundation such as sanding, silting up, mudding up, erosion, collapse and floating up of pipes, ducts or cables, sustained by completely or partly excavated open trenches and/or items laid therein, upto a maximum length of 3 km open trench only one loss event.

The Insured shall make sure that plugging facilities are available near the pipe ends for emergency purposes and that pipe ends exposed to flooding are plugged before any interruption during idle work periods such as nights and holidays.

WARRANTY CONCERNING CONSTRUCTION MATERIAL:

It is agreed and understood that otherwise subject to the terms, exclusions, provisions and conditions contained in the policy or endorsed thereon, the insurers shall only indemnify the Insured for loss, damage or liability directly or indirectly caused to construction material by flood or inundation if such construction material does not exceed three days demand and the exceeding quantities are kept in areas not endangered by 25 years flood.

EPI 46 Ground Water Pumping

It is agreed and understood that otherwise subject to the terms, exclusions, provisions and conditions contained in the policy or endorsed thereon, Insurers will not indemnify the Insured in respect of:

- (a) any loss or damage arising directly or indirectly from breakdown of any groundwater pumping system unless standby pumping facilities, equivalent to at least the capacity of the largest operating pump, are installed and ready for immediate use prior to the commencement of the pumping operations; and
- (b) any costs or expenses incurred in respect of groundwater pumping operations.

Minimum Damage Area Warranty

Any loss or damage admissible in the policy consisting of Single/ Multiple patches, the policy shall indemnify only those individual Patches which are more than 100 sqm.

Road widening and augmentation works warranty

It is agreed and understood that

- (a) For existing road, the coverage is restricted to the actual work done on the existing road as per the contract agreement.
- (b) The Sections/ Chainages damaged previously & not reinstated shall not be covered till complete reinstatement subject to declaration of Insured confirming reinstatement.

Storage Warranty:

Notwithstanding the conditions, provisions and other endorsements of the Policy, it is agreed and understood that the company shall indemnify the Insured in respect of any loss or damage caused by Fire/Explosion only if the following requirements are fulfilled.

1. Watch and Ward facility shall be provided round the clock at the site.
2. Materials and equipments stored in buildings (sheds) or in open area shall be divided into sub-units with the value, which shall not exceed 10% of the sum insured or Rs. 50 Crores whichever is less. Wherever value of single equipment stored exceeds this limit, its value shall be taken as the limit. The sub-units in open area shall be separated from each other by a distance of atleast 15 m. In case of storage buildings, firewalls of 9" thickness carried upto roof shall be erected without any wall openings between the sub-units.
3. Packing materials, scaffolding etc. combustible materials and liquids and explosive substances should be stored at a 30 M safe distance from other buildings, plants and stores.
4. Utmost attention should be paid to good housekeeping such as -
 - i. Orderly storage;
 - ii. Periodic removal of combustible packing material, either by burning on site at a safe distance of 100 M away or removal from the site;
 - iii. Clean - up of site atleast once a week
5. Open flame work (welding, cutting etc.) requires utmost caution. All combustible materials lying about must be removed or covered.
6. Grass and/or any other vegetation in and around the site are regularly removed.
7. 'No smoking' rules must be enforced in areas exposed to fire (stores etc.) and in the vicinity of hazardous operations.
8. Living quarters should be well separated (100 M away) from construction site.

